



Notification Waiver Determination

Bain Capital – Gong cha

Acquisition	BCPE Genuine Holdco Ltd., a special purpose vehicle ultimately solely controlled by Bain Capital Investors, LLC. (Bain Capital), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Gong cha Limited (the Gong cha group), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	8 September 2026

Parties to the Acquisition	BCPE Genuine Holdco Ltd. is a special purpose vehicle established solely for the Acquisition, with no prior business activities. It is ultimately solely controlled by Bain Capital. Bain Capital is a limited liability company organised in Delaware and is the ultimate general partner of numerous private equity funds. Bain Capital, through such funds, invests in companies with activities in various industries, including technology, media and telecommunications, healthcare, retail and consumer products, financial and business services, and industrial/manufacturing. The Gong cha group is a global operator and franchisor of tea shops, principally focused on bubble tea and other tea-based beverages. It generates revenue through directly operated stores, product sales to franchisees and franchise-related fees, including royalties, licence fees and marketing fees. It also supports its franchise network through operational training, marketing support and related franchise services. In Australia, it does not operate stores directly, but generates revenue from Gong cha branded stores in Australia through selling products to its Australian master franchisee, Gong cha Australia Pty Ltd, and royalties.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:

	a. there is no horizontal overlap between Bain Capital (including its connected entities) and the Gong cha group in the supply of bubble tea and other tea-based beverages in Australia b. given Bain Capital does not have any upstream or downstream interests that are materially relevant to the Gong cha group, there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition c. there are several alternative suppliers of bubble tea and other tea-based beverages in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act